

From: Owen R. officeexecutorowenrobertlewis@gmail.com
Subject: OPEN CORRESPONDENCE — Formal Notice — J14aa 15 August 2024 — Continuing Harm and General Environmental Duty
Date: 22 August 2026 at 11:29 am
To: tom.irvine@northleafcapital.com, Adrian Jetter adrian.jetter@northleafcapital.com

OR

OPEN CORRESPONDENCE

Dear Directors,

I write on behalf of **LEWIS TROJAN HORSE PTY LTD** (ACN 693 680 509), as Trustee of the **Owen Robert Inter Vivos Trust**, concerning an unresolved matter arising from the investigation of the 15 August 2024 noise complaint at J14aa and its present significance in circumstances where **the Beneficiary continues to report disturbance and harm from operational wind-farm noise**.

This is **open correspondence**.

It is being sent directly to the directors of **Lal Lal Wind Farms Nom Co Pty Ltd** (ACN 625 768 774) to ensure that the matter and the presently assembled documentary record are brought directly to the Company's attention.

The relevant public documentary record is available here:

<https://lallalwindfarmrecord.com.au/j14aa-15-august-2024.html>

Purpose of this notice

The Trustee does **not** contend that a momentary noise-logger display, standing alone, establishes a formal noise exceedance or regulatory non-compliance.

The issue requiring reconciliation is narrower.

At approximately 3:34 am on 15 August 2024, the Beneficiary reported being woken by turbine noise described contemporaneously as "**thumping and roaring**".

At that time, SLR Consulting Australia Pty Ltd monitoring equipment was operating at J14aa.

The contemporaneous logger display recorded:

- LAeq — **47.8 dB**;
- LAF90.0 — **45.6 dB**; and
- local wind display — **1.2 m/s**.

The Trustee recognises that the values visible on a momentary display are not, of themselves, a substitute for analysis of the underlying time-synchronised monitoring data.

That is precisely why the underlying SLR data is important.

Complaint investigation and the 9.5 m/s response

The subsequent Lal Lal Wind Farm response to complaint **LLWF-Ela-2395** recorded an average wind speed of **9.5 m/s** and stated:

"Wind conditions would not have caused excessive noise. Will cont to monitor."

The response, however, does not identify the source or measurement height of the 9.5 m/s figure and does not identify whether the contemporaneous SLR monitoring data from J14aa was examined in reaching that conclusion.

That issue is particularly material because SLR had previously adopted the K15aa noise limits for its interim assessment of J14aa because a separate baseline noise limit had not been established for J14aa.

The K15aa night-time noise limit identified by SLR is **40.0 dBA at both 9 m/s and 10 m/s hub-height wind speed**.

The Trustee does not seek to equate the momentary logger display with a formal assessment against that limit. Rather, if the 9.5 m/s figure recorded in the complaint investigation was the relevant hub-height/reference wind speed, the underlying contemporaneous SLR monitoring data becomes directly relevant to understanding how the investigation conclusion was reached.

The unanswered request and unresolved reconciliation

This is not a question raised for the first time now.

On 11 September 2024, the Beneficiary expressly asked whether the data from the noise logger had been reviewed as part of the investigation of the complaint.

On the presently available documentary record, that question remains unanswered.

The Trustee therefore cannot reconcile the stated outcome of the complaint investigation with the unanswered request to identify whether the contemporaneous SLR monitoring data was actually examined as part of that investigation.

The Trustee is not asserting that the data was not examined.

The difficulty is that monitoring equipment engaged by the wind farm was operating at the dwelling during the reported disturbance; the operator subsequently reached an investigation conclusion; and yet the presently available record does not establish whether that contemporaneous monitoring data was considered in reaching it.

The question is therefore straightforward:

Was the contemporaneous SLR monitoring data investigated. and. if so. how did it inform the conclusion reached?

If the data **was examined**, the Trustee asks that the Company identify that fact, the relevant results and how those results informed the investigation.

If the data **was not examined**, the Trustee asks that the Company explain the basis upon which the investigation conclusion was reached without reference to contemporaneous monitoring data available from the dwelling.

Existing mitigation and continuing reported harm

There is a further material consideration.

The 15 August 2024 event occurred after noise mitigation had already been implemented at the dwelling.

The significance of the matter therefore does not end with the administrative handling of a historical complaint.

The Beneficiary continues to report disturbance and harm from operational wind-farm noise at the dwelling. The reported harm has not ceased.

Accordingly, the Trustee raises the unresolved 15 August 2024 investigation because it forms part of the documentary record relevant to a **present and continuing issue**, rather than merely seeking to revisit an historical complaint.

The Trustee considers that the combination of:

- a reported night-time disturbance;
- acoustic monitoring equipment operating at the dwelling during the relevant period;
- an investigation conclusion which the Trustee cannot presently reconcile with the unanswered request concerning that monitoring data;
- the occurrence of the reported disturbance after mitigation had already been implemented; and
- continuing reports of disturbance and harm,

warrants substantive consideration of whether the existing controls remain sufficient and whether further reasonably practicable measures are available.

General Environmental Duty

The Trustee raises this matter expressly in the context of the **General Environmental Duty under the Environment Protection Act 2017 (Vic)**.

For clarity, the Trustee does **not** presently contend that the 15 August 2024 event, standing alone, establishes a contravention of the General Environmental Duty.

The significance of this notice is that **Lal Lal Wind Farms Nom Co Pty Ltd is now being directly and expressly placed on notice** of:

- the continuing reported disturbance and harm;
- the 15 August 2024 reported disturbance after mitigation had already been implemented;
- the contemporaneous presence of SLR monitoring equipment at J14aa;
- the recorded complaint-investigation conclusion;
- the unanswered question as to whether the contemporaneous monitoring data was actually examined; and
- the presently assembled documentary record concerning those matters.

In those circumstances, the Trustee considers that the issue cannot reasonably be confined to whether complaint LLWF-Ela-2395 was historically recorded as investigated or closed.

The present issue is whether, having regard to the information now before the Company and the continuing reports of harm, the relevant risks have been adequately identified and whether all reasonably practicable measures to eliminate or reduce those risks have been considered and implemented.

Requested reconciliation and response

Accordingly, the Trustee requests that **Lal Lal Wind Farms Nom Co Pty Ltd** confirm:

1. whether the underlying SLR monitoring data for J14aa covering the relevant period on 15 August 2024 has been preserved;
2. whether that data was examined as part of the investigation of complaint LLWF-Ela-2395;
3. if it was examined, what the relevant time-synchronised monitoring results showed and how those results informed the investigation conclusion;
4. if it was not examined, the basis upon which the investigation conclusion was reached without reference to that contemporaneous monitoring data;
5. the source, measurement height and basis of the **9.5 m/s** average wind-speed figure recorded in the complaint response;
6. having regard to the fact that the reported disturbance occurred after mitigation had been implemented at the dwelling, whether the effectiveness of that mitigation was subsequently assessed in light of the complaint and available monitoring information; and
7. having now been expressly informed that the Beneficiary continues to report disturbance and harm, what further assessment the Company proposes to undertake as to whether additional reasonably practicable measures are available to eliminate or reduce the relevant risk of harm from operational wind-farm noise.

For clarity, the Trustee is not asking the directors personally to undertake an acoustic assessment. The Trustee asks that these matters be referred to appropriately qualified personnel and that the documentary, technical and administrative questions identified above be substantively addressed.

Failure of the Lal Lal Wind Farm email pathway and direct notice

The Trustee also records that correspondence directed to info@lallalwindfarms.com.au is presently being returned as undeliverable.

Most recently, the Trustee's email of 18 August 2026, **Notice of Professional Complaints Lodged — Lal Lal Wind Farm Acoustic Assessment Record**, was addressed to the Lal Lal Wind Farm information address together with relevant regulatory and other recipients.

The subsequent mail-delivery notification recorded "**Message not delivered**", that the recipient server did not accept attempts to connect, and ultimately recorded the delivery action as **failed**.

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The Trustee does not speculate as to the reason for that failure.

It is nevertheless material because the Lal Lal Wind Farm correspondence pathway has historically been used to raise matters concerning operational noise and disturbance, including matters relevant to the present notice.

In circumstances where correspondence to that address is now being returned as undeliverable, the Trustee cannot responsibly rely upon it as an effective means of ensuring that information concerning continuing reported harm and environmental risk is actually received by the Company.

Accordingly, this open correspondence is being sent **directly to the two directors of Lal Lal Wind Farms Nom Co Pty Ltd**.

The purpose is to remove any possible uncertainty as to corporate receipt and to provide the Company itself with the opportunity to determine the appropriate manner in which the matters raised should be addressed.

The Company is therefore now expressly provided with notice of the continuing reported harm, the unresolved 15 August 2024 investigation issue, the significance of the existing mitigation, and the documentary record identified above.

The Trustee would appreciate a **substantive response within 7 days** addressing the matters set out in this notice.

Kind regards,

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

